

23STCV19005 23STCV19005

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-15

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Case Number: 23STCV19005 Hearing Date: July 15, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 15, 2026

Case Name: Alan, et al. v. Machado, et al.

Case No.: 23STCV19005

Matter: Demurrer; Motion to Strike

Moving Party: Defendant Christy Machado White

Responding Party: Plaintiffs Tami Kim Alan, Naomi Alan, Marina Alan, and Kendrick Alan

Notice: OK

Ruling: Tata's Demurrer is overruled.

The Motion to Strike is granted in part, without leave to amend.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On March 17, 2026, Plaintiffs Tami Kim Alan, Naomi Alan, Marina Alan, and Kendrick Alan filed the operative Second Amended Complaint ("SAC") against Defendants Nathaniel Machado, Christy Machado White, Penske Jaguar Land Rover, Jaguar Cars, Tata Motors, and Does 1-100 for (1) violations of the UCL, (2) battery, (3) negligence (wrongful death), (4) negligent entrustment, (5) loss of consortium, (6) aiding and abetting, and (7) negligence.

Plaintiffs allege that "Decedent Keith Alan [] was a successful lawyer, husband to Plaintiff Tami Kim Alan and father to Plaintiffs Naomi Alan, Marina Alan and Kendrick Alan. He was 58 years old on the date of his death on August 14, 2021 when Defendant Nathaniel Machado [] drove his new pickup truck into Mr. Alan and his wife's 2008 Jaguar XK automobile [] in a side impact collision."

Demurrer

Christy Machado White demurs to the SAC's third through seventh causes of action for uncertainty and failure to state sufficient facts.

When considering demurrers, courts read the allegations liberally and in context, and "treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda, (2007) 147 Cal.App.4th 740, 747.) It is error "to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist., (1992) 2 Cal.4th 962, 967.)

White contends that she "is the mother of Mr. Machado. Defendant did not own or possess the vehicle that Mr. Machado was driving at the time of the subject accident. Defendant was not involved in the subject accident. Defendant was not at the scene of the subject accident."

Negligence requires duty, breach of duty, proximate causation, and damages. (N.N.V. v. American Assn. of Blood Banks (1999) 75 Cal.App.4th 1358, 1402.)

" 'It is generally recognized that one who places or entrusts his [or her] motor vehicle in the hands of one whom he [or she] knows, or from the circumstances is charged with knowing, is incompetent or unfit to drive, may be held liable for an injury inflicted by the use made thereof by that driver, provided the plaintiff can establish that the injury complained of was proximately caused by the driver's disqualification, incompetency, inexperience or recklessness.' " (Osborn v. Hertz Corp. (1988) 205 Cal.App.3d 703, 708.)

The "plaintiff must prove all of the following: "1. That [name of driver] was negligent in operating the vehicle; [¶] 2. That [name of defendant] was an owner of the vehicle operated by [name of driver]; [¶] 3. That [name of defendant] knew, or should have known, that [name of driver] was incompetent or unfit to drive the vehicle; [¶] 4. That [name of defendant] permitted [name of driver] to use the vehicle; and [¶] 5. That [name of driver]'s incompetence or unfitness to drive was a substantial factor in causing harm to [name of plaintiff]." (CACI No. 724.)

The elements for loss of consortium are: "(1) a valid and lawful marriage between the plaintiff and the person injured at the time of the injury; [¶] (2) a tortious injury to the plaintiff's spouse; [¶] (3) loss of consortium suffered by the plaintiff; and [¶] (4) the loss was proximately caused by the defendant's act." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 746, fn. 2.) "A cause of action for loss of consortium is, by its nature, dependent on the existence of a cause of action for tortious injury to a spouse." (Id. at p. 746.)

Here, the SAC alleges that “At or around the time Machado acquired his new pickup truck [], Machado lacked sufficient personal financial resources to purchase the Truck on his own. But for White’s financial contribution, Machado would not have been able to purchase the Truck. White partially paid for the Truck and/or provided financial assistance that was essential to Machado’s acquisition of the Truck. White’s financial contribution was a necessary and substantial factor in enabling Machado to acquire the Truck. 22. At the time White provided the financial assistance enabling Machado to acquire the Truck, White knew or had reason to know each of the following facts: (a) that Machado had a long history of drunk and reckless driving; (b) that Machado was almost certain to continue to drive under the influence of alcohol; (c) that it was only a matter of time before Machado seriously injured or killed someone while driving under the influence; and (d) that the Truck, because of its weight, size and height, would be likely to inflict catastrophic or lethal injuries upon the occupants of any smaller vehicle it struck in a collision.”

“A defendant ‘entruster’ who had knowledge (actual or constructive, ¶ 2:1042) of the driver’s incompetence cannot escape liability on the ground that he or she does not ‘own’ the vehicle. Common law negligent entrustment liability may be imposed, e.g., on the lessee or, in an appropriate case, a car dealer or sales person. [See *Jeld-Wen, Inc. v. Sup.Ct. (Keener)* (2005) 131 CA4th 853, 858, 872, 32 CR3d 351, 354, 364; *Johnson v. Casetta*, supra; compare *Dodge Ctr. v. Sup.Ct. (Anderson)* (1988) 199 CA3d 332, 341, 244 CR 789, 794—no factual basis for charging seller with knowledge of buyer’s incompetence; *Krawitz v. Rusch* (1989) 209 CA3d 957, 966-967, 257 CR 610, 614-615—seller’s knowledge that buyer would drive without seatbelts not ‘constructive knowledge’ that buyer would drive carelessly].” (Cal. Prac. Guide Pers. Inj. Ch. 2(II)-B.)

“It is not the act of giving a car per se which is offensive, but rather it is the act of giving a habitual drunk driver a means to cause injury not otherwise available. The facts in *Kahlenberg v. Goldstein*, supra, 431 A.2d 76, are illustrative. There, the court found sufficient causation based on the evidence the donee’s income was minimal and he obtained money from his father several times a week, permitting a reasonable conclusion he would not have obtained the car if his father had not bought it for him.” (*Talbott v. Csakany* (1988) 199 Cal.App.3d 700, 706.)

The SAC sufficiently alleges that Machado could not purchase the subject truck without White’s financial contribution; that White contributed funds for this specific purpose; and that White did so despite knowledge of her son’s frequent drunk driving and the foreseeability that he would do so again.

Therefore, the Demurrer is overruled.

Motion to Strike

White also seeks to strike the SAC’s references to punitive damages, injunctive relief, and attorney fees.

Motions to strike are used to challenge defects in the pleadings not subject to demurrer. Any party may move to strike the whole or any part of a pleading within the time allotted to respond to the pleading. (Code Civ. Proc. § 435(b)(1).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice. (Id. § 437(a).) The Court may strike out any irrelevant, false, or improper matter inserted in any pleading, and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. § 436.) An “irrelevant” matter includes any “demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Id. § 431.10(b)(3), (c); see also *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1036-1042.)

Punitive damages are available when the plaintiff establishes oppression, fraud, or malice by clear and convincing evidence. (Civ. Code § 3294(a).)

Malice means “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294(c)(1).) In this context, despicable conduct is conduct considered “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*Scott v. Phoenix Schools, Inc.* (2009) 175

Cal.App.4th 702, 715, internal quotation marks omitted.) Oppression means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code § 3294(c)(2).) Fraud means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id. § 3294(c)(3).)

“As nonintentional torts support punitive damages when the defendant's conduct ‘involves conscious disregard of the rights or safety of others,’ our focus is on malice and oppression.” (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

“[M]alice does not require actual intent to harm. (Id. at p. 895, 157 Cal.Rptr. 693, 598 P.2d 854.) Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences. (Id. at pp. 895–896, 157 Cal.Rptr. 693, 598 P.2d 854.) Malice may be proved either expressly through direct evidence or by implication through indirect evidence from which the jury draws inferences.” (Angie M. v. Superior Ct. (1995) 37 Cal.App.4th 1217, 1228.)

The SAC alleges that Defendant acted with “willful and conscious disregard” for the safety of others by deliberately arming a known habitual drunk driver with a high-mass, lethal instrumentality. This is a factual issue.

The Motion to Strike is denied as to punitive damages, but granted as to injunctive relief and attorneys' fees, without leave to amend, as these matters were unopposed.

Moving party to give notice.